

26STCV14749 26STCV14749

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-04

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Case Number: 26STCV14749 Hearing Date: September 4, 2026 Dept: 833

Gerardo Enrique Gonzalez Quintero. Case No. 26STCV14749

Hearing:

September 4, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

Axel

Henry Vaughan Shalson Judge: Joseph Lipner

[Tentative] Order Granting

Application for Writ of Possession

INTRODUCTION

Plaintiff Gerardo Enrique Gonzalez Quintero

("Plaintiff") moves for a writ of possession against Defendant Axel Henry

Vaughan Shalson ("Defendant") over the following property: A dog named Emma. Defendant has not filed an opposition.

The Court GRANTS the application for writ of

possession and the temporary restraining order, contingent on confirming that

the papers were properly served on Defendant. Plaintiff will also need to submit a revised

proposed on form CD-120 order that checks all relevant boxes and fills in the specific information necessary (see, e.g., CD-120 section 3(a)-(d), 5(b), 5(d), and 5(f), 5(g).)

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” (Code Civ. Pro. § 512.010, subd. (a).)

Pursuant to Code of Civil Procedure section 512.010, subd. (b), the application must be submitted under oath and include:

- (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.
- (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.
- (3) A particular description of the property and a statement of its value.
- (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.
- (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Pro. § 512.030.)

“The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Pro. § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 511.090.)

DISCUSSION

A.

Notice

According

to notice and acknowledgment of receipt filed July 17, 2026, Defendant has received notice of this request for writ of possession. However, the Court will inquire about this at the hearing as the notice and acknowledgment of receipt is signed not by Defendant himself but by “Stephen L. Cawelti, Esq.” who is listed as attorney for Defendant. The Court has no independent indication that Mr. Cawelti is in fact the attorney for defendant.

B.

Probable Validity of Plaintiff’s Claim

Plaintiff seeks writs of possession based on its cause of action for (1) breach of oral, written, and implied contract; (2) conversion; and (3) claim and delivery.

Plaintiff and Defendant began a romantic relationship around 2016. (Cristina Gonzalez Quintero Decl., ¶ 4.) In March 2018, Defendant gifted a Pembroke Welsh Corgi named Emma to Plaintiff. (Gerardo Enrique Gonzalez Quintero Decl., ¶ 4.) Plaintiff has treated Emma as his dog and assumed primary responsibility for her care, including but not limited to, feeding, training, daily care, and the majority of her veterinary treatment. (Id., ¶ 6.)

Emma's microchip is solely registered with Plaintiff and Emma's veterinary records list Plaintiff as the owner. (Id., ¶¶ 7-8.)

After the relationship between Plaintiff and Defendant ended, Plaintiff allowed Defendant visitation with Emma under which Defendant recognized and acknowledged Plaintiff's ownership of Emma. (Id., ¶ 10.) The visitation was on a rotating basis every two to three months. (Id., ¶ 11.)

The agreement was followed until January 14, 2026, at which time Defendant informed Plaintiff he would not return Emma to Plaintiff's custody. (Id., ¶ 12.)

Plaintiff has concerns about Emma's health and safety in Defendant's care because Defendant is addicted to meth, Defendant has thrown away AirTags which were attached to both Emma and another dog, and Defendant has admitted to physically striking another dog. (Id., ¶ 20.) Defendant has blocked Plaintiff on all communication channels, preventing them from discussing Emma's situation. (Id., ¶ 22.)

Defendant did not file an Opposition.

The record suggests Plaintiff will prevail on the underlying claim.

C.

Wrongful Detention

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(2), the application must include "a showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention." Plaintiff has made this showing.

D.

Description and Value of Property

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(3), the

application must include a particular description of the property and a statement of its value. Plaintiff has provided a particular description of the property, by dog breed and name of dog.

Plaintiff therefore satisfies section 512.010, subd. (b)(3).

E.

Statutory Statement

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(5), Plaintiff must provide a statement that the property has not been taken for a tax, assessment, or fine, pursuant to statute and has not been seized under an execution against the Plaintiff's property. The application includes this statement. (Application, ¶ 8a.)

F.

Location of the Property

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(4), Plaintiff must identify the probable location of the property and establish probable cause to that

effect. Plaintiff seeks a writ of

possession directing the levying officer to take Emma from 7271 Timber Wolf Drive Tahoma California 96142. (Gerardo Enrique Goznalez Quintero Decl., ¶ 26.)

Plaintiff explains that Defendant owns this property and exchanges of Emma have occurred at this property in the past. (Ibid.)

Thus, Plaintiff

has complied with Code of Civil Procedure section 512.010, subd. (b)(4).

G.

Undertaking.

Code of Civil Procedure section 515.010 requires an undertaking to be filed before the writ issues in the amount of "not less than twice the value of the defendant's interest in the property."

Section

515.010, subd. (a) states that the value of the defendant's interest "is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property."

However, Section 515.010, subd. (b)

says that "[i]f the Court finds that the Defendant has no interest in the property, the court shall waive the requirement of the Plaintiff's undertaking. Instead,

Section 515.010, subd. (b) requires Defendant to post an undertaking in an amount equal to the maximum retail value.

The Court finds

that Defendant has no interest in Emma, and bases this finding on the fact that Plaintiff is the owner listed on the microchip and the veterinary records.

Therefore, Defendant must post an undertaking of \$2,000, which is equivalent to the alleged market value of Emma. (Gerardo Enrique Gozalez Quintero Decl., ¶ 27.)

H.

Turnover Order

Section 512.070

states: "If a writ of possession is issued, the court may also issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court."

(emphasis added.) "Thus a 'turnover' order, issued pursuant to section 512.070, is not a separate remedy but rather an alternative means of enforcing a writ of possession." (Edwards v. Sup.Ct. (1991) 230 Cal.App.3d 173, 178.)

The Court also

issues a turnover order.

I.

Oral Evidence

"A party seeking permission to introduce oral evidence, except for oral evidence in rebuttal to oral evidence presented by

the other party, must file, no later than three court days before the hearing, a written statement stating the nature and extent of the evidence proposed to be introduced and a reasonable time estimate for the hearing.” (Cal. Rules of Court, Rule 3.1306, subd. (b).)

Plaintiff has not complied with this rule and has not requested oral evidence.

J.

Temporary Restraining Order

A temporary restraining order may issue in property possession disputes when there is an immediate danger that the property may become unavailable for levy due to being transferred, concealed, or removed, or when property may become substantially impaired in value. (Civil Code § 513.010.) A plaintiff must also establish the probable validity of their claim and provide an undertaking. (Ibid.)

The Court waives the undertaking, as Defendant has no legal interest in Emma. Plaintiff has already established the probable validity of the claim and Plaintiff has presented evidence that Defendant has been abusive to dogs in the past.

Therefore, the Court will grant a temporary restraining order that prohibits Defendant from doing the following:

(1)
transferring any interest in EMMA by sale, pledge, or grant or security interest or otherwise disposing of or encumbering her;

(2)
concealing or otherwise removing EMMA in such a manner as to make her less available to seizure by the levying officer; and

(3)
impairing the value of the property either by acts of destruction or by failure to care for the property in a reasonable manner.

CONCLUSION

The Court GRANTS the temporary restraining order
and the writ of possession.

IT IS SO ORDERED.

Dated: September 4,
2026

Joseph
Lipner

Superior
Court Judge